

Court No. - 21

Case :- WRIT - C No. - 20356 of 2015

Petitioner :- Soran Singh

Respondent :- State Of U.P. & Another

Counsel for Petitioner :- Rajesh Dutta Pandey

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Vikram Nath,J.

Hon'ble Dinesh Gupta,J.

Heard learned counsel for the petitioner, learned standing counsel for respondent no.1 and Sri Santosh Kumar Misra representing respondent no.2.

Sri Misra may obtain instructions with regard to the grievance of the petitioner that without there being any Electricity Connection Electricity bills are being raised.

It is also the case of the petitioner that for the last 12 years he has been trying for Electricity Connection but same has not been provided so far.

Put up this case in the additional case list on 20.4.2015 showing the name of Sri Santosh Kumar Misra for the side of respondent.

Order Date :- 13.4.2015

vkj

Court No. - 21

Case :- WRIT - C No. - 20356 of 2015

Petitioner :- Soran Singh

Respondent :- State Of U.P. & Another

Counsel for Petitioner :- Rajesh Dutta Pandey

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi,Santosh Kumar Mishra

Hon'ble Vikram Nath,J.

Hon'ble Dinesh Gupta,J.

Put up tomorrow i.e. 21.4.2015.

Order Date :- 20.4.2015

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Court No. - 21

Case :- WRIT - C No. - 20356 of 2015

Petitioner :- Soran Singh

Respondent :- State Of U.P. & Another

Counsel for Petitioner :- Rajesh Dutta Pandey

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi,Santosh Kumar Mishra

Hon'ble Vikram Nath,J.

Hon'ble Mukhtar Ahmad,J.

On the request of Sri Santosh Kumar Mishra, learned Standing Counsel, put up this case on 27th April, 2015.

Order Date :- 21.4.2015

M.A.Ansari

Court No. - 32

Case :- WRIT - C No. - 20356 of 2015

Petitioner :- Soran Singh

Respondent :- State Of U.P. & Another

Counsel for Petitioner :- Rajesh Dutta Pandey

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi,Santosh Kumar Mishra

Hon'ble Tarun Agarwala,J.

Hon'ble Pratyush Kumar,J.

Learned counsel for the respondents states that he has not received instruction as yet.

Put up day after tomorrow i.e., 29.04.2015 before appropriate Bench.

Order Date :- 27.4.2015

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(Pratyush Kumar,J.) (Tarun Agarwala,J.)

Court No. - 32

Case :- WRIT - C No. - 20356 of 2015

Petitioner :- Soran Singh

Respondent :- State Of U.P. & Another

Counsel for Petitioner :- Rajesh Dutta Pandey

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi,Santosh Kumar Mishra

Hon'ble Tarun Agarwala,J.

Hon'ble Amar Singh Chauhan,J.

Learned Standing Counsel will file counter affidavit within two weeks.

List thereafter.

Order Date :- 29.4.2015

Puspendra

(Amar Singh Chauhan,J.)

(Tarun Agarwala,J.)

Court No. - 21

Case :- WRIT - C No. - 20356 of 2015

Petitioner :- Soran Singh

Respondent :- State Of U.P. & Another

Counsel for Petitioner :- Rajesh Dutta Pandey

Counsel for Respondent :- C.S.C.,Baleshwar
Chaturvedi,Santosh Kumar Mishra

Hon'ble V.K. Shukla,J.

Hon'ble Mahesh Chandra Tripathi,J.

List in the next cause list.

Order Date :- 10.8.2016

Ram Murti

Court No. - 21

Case :- WRIT - C No. - 20356 of 2015

Petitioner :- Soran Singh

Respondent :- State Of U.P. & Another

Counsel for Petitioner :- Rajesh Dutta Pandey

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi,Santosh Kumar Mishra

Hon'ble V.K. Shukla,J.

Hon'ble Mahesh Chandra Tripathi,J.

List in the next cause list on the request of Sri Rajesh Dutt Pandey, learned counsel for the petitioner.

Order Date :- 14.9.2016

T.S.

Court No. - 21

Case :- WRIT - C No. - 20356 of 2015

Petitioner :- Soran Singh

Respondent :- State Of U.P. & Another

Counsel for Petitioner :- Rajesh Dutta Pandey

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi,Santosh Kumar Mishra

Hon'ble V.K. Shukla,J.

Hon'ble Virendra Kumar-II,J.

Soran Singh is before this Court with the request to command the respondents to connect the power supply by installation of poles and wires and further prayer has been made not to recover any electricity bill without giving power supply to the petitioner.

Categorical stand has been taken that petitioner alongwith others had applied for the electricity connection under the Scheme known as Gramin Kutir Jyoti Scheme by depositing Rs. 730 and under the said scheme in question the consumer was entitled to draw line in question and consume the electricity and entire village in question is consuming the electricity in the same manner and the petitioner has been duly informed of this fact by communication dated 8.6.2011.

Once such is the factual situation that under a particular scheme named as Gram Kutir Jyoti Scheme petitioner has applied for electricity connection and as per the terms and conditions of the said scheme connection has been provided for wherein consumer himself draw the line and then consume the energy, then as far as we are concerned, we are not at all coming to rescue and reprieve of the petitioner as on one hand petitioner is submitting that he is not consuming energy whereas department is coming up with the case that energy is being consumed and accordingly bills are being raised and till today, not a single penny has been paid. Such a disputed question of fact should be raised before appropriate forum. Petitioner can always invoke the remedial forum, as is provided for under the the Electricity Act, 2003 read with U.P. Electricity Supply Code, 2005.

With this, writ petition is ***disposed of.***

Order Date :- 18.11.2016

Shalini